

24STCV17069 24STCV17069

County: los-angeles

Division: Civil Law and Motion

Department: 511

Hearing date: 2026-09-15

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C511%2C09%2F15%2F2026

Source SHA-256: f1146c6ff3d3d2ef52f9c164e3bb7f72708476e6ad68a353ed61882d6ae357bc

Case Number: 24STCV17069 Hearing Date: September 15, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: September

15, 2026

CASE NAME: Ernesto

Martinez v. American Honda Motor Co., Inc.

CASE NO.: 24STCV17069

MOTION

FOR ATTORNEYS' FEES

MOVING PARTY: Plaintiff

Ernesto Martinez

RESPONDING PARTY(S): American Honda Motor Co., Inc.

REQUESTED RELIEF:

1. An

order awarding \$30,000.81 in attorneys' fees and costs.

TENTATIVE RULING:

1. Motion

for attorneys' fees and costs is GRANTED as modified in the amount of \$15,928 in fees and \$594.21 in costs.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On July 10, 2024, Plaintiff Ernesto Martinez (Plaintiff) filed a Song-Beverly complaint against Defendant American Honda Motor Co., Inc. (Defendant or Honda) with causes of action for: (1) breach of the implied warranty of merchantability; (2) breach of the implied warranty of fitness; (3) sale of defective merchandise without disclosing defects; (4) breach of express warranty; (5) failure to promptly repurchase product; and (6) failure to commence repairs within a reasonable time and to complete them within 30 days.

Plaintiff alleges he leased a 2022 Honda Ridgeline from Honda that developed various defects during the warranty period that Honda could not fix.

On August 12, 2024, Honda filed an answer.

On September 3, 2025, Honda filed a stipulation and order to continue the post-mediation status conference which the court GRANTED.

On December 10, 2025, Plaintiff filed an offer to compromise and acceptance under CCP § 998.

On December 18, 2025, Plaintiff filed a proposed order granting offer to compromise which the court GRANTED.

On June 15, 2026, Plaintiff filed the instant motion for attorneys' fees and costs. On September 1, 2026, Honda filed an opposition.[1] On September 8, 2026, Plaintiff filed a reply.

LEGAL STANDARD:

A prevailing buyer in an action under Song-Beverly "shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the Court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such

action.” (Civ. Code, § 1794(d).) By permitting buyers who prevail under Song-Beverly to recover their attorneys’ fees, “our Legislature has provided injured consumers strong encouragement to seek legal redress in a situation in which a lawsuit might not otherwise have been economically feasible.” (Murillo v. Fleetwood Enterprises, Inc. (1998) 17 Cal.4th 985, 994.)

The prevailing party has the burden of showing that the requested attorney fees are reasonable. (Robertson v. Fleetwood Travel Trailers of California Inc. (2006) 144 Cal.App.4th 785, 817.) The party seeking attorney fees “is not necessarily entitled to the compensation of the value of attorney services according to [his or her] own notion or to the full extent claimed. . . .” (Levy v. Toyota Motor Sales, USA, Inc. (1992) 4 Cal.App.4th 807, 816.) If the “time expended or the monetary charge being made for the time expended are not reasonable under all circumstances, then the court must take this into account and award fees in a lesser amount.” (Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104.)

A calculation of attorneys’ fees for a Song-Beverly action begins with the “lodestar” approach, under which the Court fixes the lodestar at “the number of hours reasonably expended multiplied by the reasonable hourly rate.” (Margolin v. Regional Planning Com. (1982) 134 Cal.App.3d 999, 1004-1005.) “California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys’ fee award.” (Ibid.)

“It is appropriate for a trial court to reduce a fee award based on its reasonable determination that a routine, non-complex case was overstaffed to a degree that significant inefficiencies and inflated fees resulted.” (Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 39.) It is also appropriate to reduce a fee award based on “inefficient or duplicative efforts” in the billing record. (Id. at p. 38.) However, the analysis must be “reasonably specific” and cannot rely on general notions about the fairness

of the fee award. (*Kerkeles v. City of San Jose*, (2015) 243 Cal.App.4th 88, 102.) Moreover, in conducting the analysis, courts are not permitted to tie any reductions in the fee award to some proportion of the buyer's damages recovery. (*Warren v. Kia Motors America, Inc.*, (2018) 30 Cal.App.5th 24, 39.)

The lodestar figure may also be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. (*Serrano v. Priest*, (1977) 20 Cal.3d 25, 49; *PLCM Group, Inc. v. Drexler*, (2000) 22 Cal.App.4th 1084, 1095.) The factors considered in determining the modification of the lodestar include the nature and difficulty of the litigation, the amount of money involved, the skill required and employed to handle the case, the attention given, the success or failure, and other circumstances in the case. (*EnPalm, LLC v. Teitler Family Trust*, (2008) 162 Cal. App. 4th 770, 774 (emphasis in original).) A negative modifier was appropriate when duplicative work had been performed. (*Thayer v. Wells Fargo Bank, N.A.*, (2001) 92 Cal.App.4th 819.)

ANALYSIS:

Prevailing
Party

Here, Plaintiff is the prevailing party because the CCP § 998 offer he accepted on November 6, 2025 provides such. (Offer to Compromise, December 10, 2025.)

Lodestar
Fees

The lodestar method looks at the time spent on a matter multiplied by the reasonable hourly rate. (*Serrano*, supra, 20 Cal.3d at 49.) The two-step process begins with the lodestar method, which is the time spent on the matter multiple by the hourly rate.

After the lodestar method, the second step is determining whether a multiplier should be applied. The factors that Courts look at to determine if a multiplier is reasonable are: 1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132).

;

Reasonableness of Hourly Rate

Plaintiff seeks to recover an hourly rate of \$465.00.

;

Honda challenges the hourly rate as excessive and insufficiently supported. They propose a rate between \$400 based on the United States Consumer Law Attorney Fee Survey report.

Plaintiff replies that they provided sufficient evidence supporting their requested hourly rate and reiterate that it is reasonable.

;

The trial court has discretion to “determine the hourly rates that should be used in the lodestar calculus.” (Morris, supra, 41 Cal.App.5th at p. 35.) It may do so by relying “on its own knowledge and familiarity with the legal market,” “the experience, skill, and reputation of the attorney requesting fees,” “the difficulty or complexity of the litigation to which that skill was applied,” and “affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases.” (Id. at p. 41.)

;

Here, the hourly rates requested are reasonable. Plaintiff provided evidence of Counsel's experience. (Declaration of Raphael B. Davis (Davis Decl.) ¶¶ 19-25.) Counsel also provided evidence rooting his hourly rate in his knowledge of rates charged in California for comparable

matters, prior awards of his rate in separate matters, and with the Laffey Matrix. (Id. at ¶¶ 26-32.)

¿

Thus, the hourly rates are¿appropriate. ¿However, billing at a high rate comes with the expectation that the attorney also works in an efficient manner that reflects the premium paid for his or her services. The court considers this fact in addressing the reasonableness of the hours expended, below.

¿

Reasonableness
of Hours Spent¿

Plaintiff seeks to recover a total of 52.7 hours¿on this¿matter.[2] (Davis Decl. ¶¶ 33-35.)¿

¿

Honda argues the hours spent are woefully inflated, contain nonrecoverable administrative work, and improper block billing. They propose a \$12,226.50 recovery.

Plaintiff replies that Honda did not meet their burden to demonstrate excessive billing, the billing was reasonable, and the court should make a de minimis adjustment, if any.

¿

Although a verified fee bill is “prima facie evidence the costs, expenses and services listed were necessarily incurred,” (Hadley v. Krepel¿(1985) 167 Cal.App.3d 677, 682), ultimately,¿Counsel¿still has the burden to¿demonstrate¿the reasonableness of charges.¿(Mikhaeilpoor,¿supra,¿48 Cal.App.5th¿at p.¿247.)¿¿

¿

“A trial court may not rubber stamp a request for attorney’s fees, but must determine the number of hours reasonably expended.” (Morris, supra, 41 Cal.App.5th at p. 38 [citing Donahue v. Donahue (2010) 182 Cal.App.4th 259, 271.]) In their evaluation, courts consider whether the case was overstaffed, how much time the attorney spent on particular claims, and whether the hours were reasonably expended. (Ibid.) In short, courts will not allow “padding” in the form of inefficient or duplicative efforts. (Ibid.; see also Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.) “Plainly, it is appropriate for a trial court to reduce a fee award based on its reasonable determination that a routine, noncomplex case was overstaffed to a degree that significant inefficiencies and inflated fees resulted.” (Morris, supra, 41 Cal.App.5th at p. 39.)

;

Here, the court has reviewed the fee bill submitted by Plaintiff’s counsel and the proposed reductions by Defendant, with an eye for excessive, duplicative, or unreasonable charges as contended by Defendant. As will be shown, Defendant’s contention that the billings are excessive, duplicative and unreasonable is well taken, in part.

To start, Plaintiff bills at counsel’s rate regardless of task type. (Davis Decl., Exhibit 1.) Boilerplate filings serve a useful purpose. They increase productivity by allowing for simple edits to existing documents. Thus, utilizing templates is to be commended when it results in efficiency. However, if templates are employed but attorneys are still billing significant time to make minor changes, such use of legal resources is unwarranted and any such bill is unreasonable, particularly if the attorney is billing at a high hourly rate. (Mikhaelpoor, supra, at p. 250.) Here, the court found instance where the time spent for minor cut and paste edits to templates was unreasonable.

For example, Plaintiff billed 2.5 hours to prepared a template bare bones complaint and other court documents. Only paragraphs 4, 15, 17 and the prayer list any facts specific to this case. Notably, Paragraphs 15 and 17 specific fact is the date of purchase. As far as the court can determine, the other court documents are mandatory court forms and the summons on complaint.

The list of excessive billing continues:

13.6 hours to prepare initial discovery requests to Honda, 0.7 hours to draft verifications, 0.5 hours to review the initial discovery requests prior to service, and 7.4 hours to review Honda's responses. (Davis Decl., Exhibit 1.) This excess hardly represents efficiency and experience. Additionally, there are a few entries for apparently clerical work, such as, reviewing conformed copies of filed documents, forwarding copies of documents to opposing counsel, and preparing documents for filing. (Ibid.)

In sum, this was a garden variety lemon law case with only one court appearance before resolution. Moreover, there were no contested motions filed or defended, no depositions taken and the vehicle was never even inspected by Plaintiff.

Considering counsel's professed expertise in this area, these are not novel or complex issues requiring extended time. (Morris, supra, 41 Cal.App.5th at p. 37.)

Therefore, the Court finds based upon its experience and knowledge of this type of litigation, the lack of novelty and complexity of this case, and, to align with the hours that should reasonably have been incurred, a reasonable lodestar amount is \$15,928. To be clear, the Court makes this finding based upon its experience and knowledge of this type of litigation, the lack of novelty and complexity of this case, and the professed specialization of Plaintiffs' counsel.

Accordingly, the court GRANTS Plaintiffs' motion for attorneys' fees, as modified, for a total of \$15,928.

Costs

Plaintiff seeks to recover \$594.21 in costs. (Davis Decl. ¶ 36; Exhibit 1.)

2

Honda contends the costs are not recoverable because

Plaintiff is not a prevailing buyer and failed to substantiate the cost requests rendering them unreasonable.[3]

¿

“Except as otherwise¿expressly¿provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” (Code Civ. Proc., § 1032, subd. (b).) (Emphasis added.) Code of Civil Procedure section 1032, subdivision (a) defines a “prevailing party” as “[1] the party with a net monetary recovery, [2] a defendant in whose favor dismissal is¿entered, [3] a defendant where neither plaintiff nor defendant obtains any relief, and [4] a defendant as against those plaintiffs who do not recover any relief against that defendant.”¿¿¿¿¿¿

¿¿¿¿¿¿

Costs are allowable if incurred,¿whether or not¿paid. (Code Civ. Proc., § 1033.5, subd. (c)(1).) Costs must also be “reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation” and must be reasonable in amount. (Code Civ. Proc., § 1033.5, subd. (c)(2)-(3).)¿¿

¿

Here, the costs are warranted, in part. Next, the costs are recoverable because the parties so agreed. (Davis Decl., Exhibit 2 [Judgment Pursuant to CCP § 998 at item 2].) The costs consist of filing fees and process service fees. (Davis Decl. ¶ 36.) These costs fall within the scope of recoverable costs contemplated by statute. (CCP § 1033.5(a)(1), (a)(4).)

Therefore, the court GRANTS Plaintiff’s motion for costs of \$594.21.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Motion

for attorneys' fees and costs is GRANTED as modified in the amount of \$15,928 in fees and \$594.21 in costs.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: September 15, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court

[1]

Honda also asserts evidentiary objections. Plaintiff responded to them. However, the court is unaware of any legal authority which requires a court to rule on evidentiary objections on a motion, except as to a motion for summary motion/adjudication or a special motion to strike. ([CCP § 437c (q); CCP § 425.16 (b)(2); see also, Sweetwater Union High School Dist. v. Gilbane Building Co. (2019) 6 Cal.5th 931, 947-949.) Thus, the court declines to rule on these objections.

[2]

The court declines to award a multiplier on this straightforward lemon law case with no motion practice, no deposition and no vehicle inspection defended by Plaintiff. There are simply no factors in support of a multiplier. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132 (Ketchum).) This was a relatively straightforward reasonably routine lemon law case, an area in which Plaintiffs' counsel specializes, there were not any novel or complex issues that were presented. Thus, the contingent risks, skill, and difficulty Plaintiffs' attorneys assert are absorbed by their hourly rates. (See Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 822.) Stated otherwise, Plaintiff has failed it in its burden to establish that the Ketchum factors warrant a positive multiplier. Accordingly, Plaintiffs' request for a lodestar multiplier is denied.

[3]

The court rejects the prevailing buyer argument due to the accepted CCP § 998 offer.